

25STLC00557 25STLC00557

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-06-23

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Case Number: 25STLC00557 Hearing Date: June 23, 2026 Dept: 25

HEARING DATE: Tues., June 23, 2026 JUDGE/DEPT: Eisenman/25

CASE NAME: Morales

v. Coelho, et al. COMP FILED: 03-07-25

CASE NUMBER: 25STLC00557

NOTICE: OK

PROCEEDINGS: MOTION TO DEEM FACTS ADMITTED; MOTION TO COMPEL DISCOVERY

RESPONSES; REQUEST FOR MONETARY SANCTIONS

MOVING PARTY:

Plaintiff Luis Morales

RESP. PARTY: None

MOTION TO DEEM REQUESTS FOR ADMISSION

ADMITTED; MOTION TO COMPEL RESPONSES TO FORM INTERROGATORIES AND REQUESTS FOR

PRODUCTION OF DOCUMENTS; REQUEST FOR SANCTIONS

(CCP §§ 2030.290;

2031.300; 2033.280)

TENTATIVE RULING:

The Court DENIES Luis

Morales's motions and requests for sanctions.

Morales is to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of June 16, 2026 ☐ Late ☒

None

REPLY: None

filed as of June 16, 2026 ☐ Late ☒

None

ANALYSIS:

Luis Morales served Bessie Coello (erroneously sued as Bessie

Coelho) with form interrogatories, requests for production of documents, and

requests for admission. Coello did not

timely respond. Morales moves (1) to

compel Coello's responses to interrogatories and requests for production, and (2)

to admit his requests for admission. The

Court DENIES the motions.

First, Morales has turned what

should be three motions into two. There should

be (1) a motion to compel responses to form interrogatories, (2) a motion to compel

a response to a production request, and (3) a motion to admit Morales's

requests for admissions.

Second, the Court will not compel Coello to comply with discovery

requests that are improperly propounded in a limited civil case. Unfortunately, Morales—who is represented by counsel—did

not adhere to Code of Civil Procedure section 94. Section 94, which governs limited civil

cases, allows a party to propound a mix of 35 total interrogatories (without

subparts), demands for production, and requests for admission. In part because Morales's counsel disregarded

Judicial Council Form DISC-001's directions to use DISC-004 in a limited civil

case, Morales dramatically exceeded Section 94's restrictions: Morales propounded interrogatories with

around 77 subparts, total, and otherwise exceeded the total number of allowed

discovery requests.

If Morales wishes to propound discovery on Coello and

have the Court enforce those requests, he may withdraw the requests he put to

Coello and propound new, Code-compliant requests.

Morales is

to give notice.